

25STCV20914 25STCV20914

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Case Number: 25STCV20914 Hearing Date: September 28, 2026 Dept: 406

ANDREA

MORA ALCAUTER,

Plaintiff,

v.

CHUGH

LLP, et al.,

Defendants.

Case No.: 25STCV20914

Hearing Date: September 28, 2026

[TENTATIVE] order RE:

PLAINTIFF'S MOTIONS TO COMPEL FURTHER
RESPONSES (CRS# 8664, 5798, 1654, & 9269)

BACKGROUND

On July 15, 2025, Plaintiff Andrea Mora Alcauter ("Plaintiff") filed this employment discrimination action against Defendants Chugh, LLP and Navneet Chugh (collectively, "Defendants"). Plaintiff alleges that she was harassed and discriminated against based on her national origin and disability. Plaintiff alleges that Defendants retaliated against her

for reporting this misconduct and for reporting an immigration fraud scheme occurring within the company. Plaintiff alleges that she was compelled to resign due to intolerable conditions.

On March 20, 2026, the Court granted in part Plaintiff's motion to compel further responses to interrogatories and requests for production. Defendant Chugh, LLP was ordered to provide further responses by April 30, 2026.

On June 26, 2026, Plaintiff filed the instant four motions to compel Defendants' further responses to interrogatories and requests for production that were at issue in this Court's March 20, 2026 Order. Defendants filed oppositions on September 15, 2026. Plaintiff replied on September 18, 2026.

REQUEST FOR JUDICIAL NOTICE

Defendants request that the Court take judicial notice of: (1) the "Tentative Ruling dated August 7, 2026, in this same action, ruling on Cross Defendant Andrea Mora Alcauter's motions to compel further responses to discovery propounded in Defendants' cross-complaint against Plaintiff (Los Angeles County Superior Court Case No. 25STCV20914);" and (2) the "Tentative Ruling dated August 10, 2026, in this same action, ruling on Plaintiff's motion to compel a further deposition of Defendant CHUGH, LLP's person most qualified, and Plaintiff's motions to compel further responses to Requests for Production, Set Two, and related written discovery (Los Angeles County Superior Court Case No. 25STCV20914)." (RJN at p. 2; Evid. Code § 452, subd. (d).)

The request is granted. (Evid. Code § 452, subd. (d).) The Court takes judicial notice of these documents only as to "the existence, content and authenticity of public records and other specified documents;" it does not take judicial notice of the truth of any factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

LEGAL STANDARD

Upon receiving responses to its discovery

requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a).)

DISCUSSION

I.

Special Interrogatories (CRS# 9269)

As an initial matter, Plaintiff's motion seeks further responses to SROG Nos. 9-11, 13, 14, 19, and 20. Plaintiff, however, does not include No. 20 in her separate statement. The Court will not analyze interrogatories not included in the separate statement.

a.

SROG Nos. 9 and 13

SROG Nos. 9 and 13 ask Defendants to describe their responses to Plaintiff's HR complaints. Defendants' second supplemental responses acknowledge that Plaintiff made complaints or raised concerns and generally state that management and HR internally reviewed and communicated about said concerns without a formal report or disciplinary action.

The Court previously found that the SROGs "require Defendant[s] to describe the steps [they] took, not merely state that [they] 'took steps'." Defendants' general statements of receiving and communicating about the complaints again evade the call of the questions and disregard the Court's prior order. Defendants' responses do not offer a single, concrete detail as to the steps taken post-complaints.

The motion is GRANTED as to SROG Nos. 9 and 13.

b.

SROG No. 10

SROG No. 10 asks Defendants to identify all of their communications with the EEOC regarding an EEOC charge filed by Plaintiff. Defendants responded: "Responding Parties communicated with the

Equal Employment Opportunity Commission regarding Plaintiff's administrative charge. Those communications include submission of a written position statement and related correspondence exchanged with the EEOC during the administrative process. Certain communications are withheld on the basis of attorney-client privilege and/or work product protection and will be identified if a privilege log is ordered."

This response is almost identical to the one the Court previously found to be "evasive;" Defendants merely repackaged the meat of the response. Thus, the Court reiterates its finding from the March 20th Order: "The interrogatory asks Defendant[s] to identify the communications, not merely acknowledge their existence. Defendant[s] fail[] to demonstrate that the requested information is privileged. (See Behunin v. Superior Court (2017) 9 Cal.App.5th 833, 844 ['the burden of establishing that a particular matter is privileged is on the party asserting the privilege'].) Communications with the EEOC are not attorney-client communications, and Defendant[s] fail[] to establish that the communications constitute work product. Moreover, the interrogatory asks Defendant[s] to 'identify' communications, not to produce their contents. Even if a privilege did apply, Defendant[s] only claim[] that "[certain]" communications are privileged. Thus, privilege would not justify Defendants' complete refusal to provide any information."

The motion is GRANTED as to SROG No. 10.

c.

SROG No. 11

SROG No. 11 asks Defendants to describe all modifications made to Plaintiff's timesheets, including who made the modifications, when they were made, and the reasons for such modifications. Defendants responded: "Plaintiff was required to record her time in the firm's timekeeping system. Time entries were reviewed by supervisory personnel and accounting personnel for billing accuracy and client-related requirements. Responding Parties have not identified any specific instance in which Plaintiff's time entries were modified for the purpose of reducing Plaintiff's compensation. Responding Parties have not identified any specific time-entry modification, including the identity of a person who made such a modification, the date of such modification, or the reason for such modification, that reflects improper or unlawful conduct."

Defendants impermissibly self-limit the responses to modifications “for the purpose of reducing Plaintiff’s compensation” and reflecting “improper or unlawful conduct.” The response is evasive. Defendants must identify any modification made to Plaintiff’s timesheets and respond to the who, when, and why subcategories.

The motion is GRANTED as to SROG No.

11.

d.

SROG No. 14

SROG No. 14 asks Defendants to identify all communications they had with Plaintiff regarding her role as a witness in the Merlin Sight litigation. Plaintiff alleges that Defendants retaliated against her for serving as a witness in the Merlin Sight matter. Defendants responded: “Responding Parties communicated with Plaintiff regarding work-related matters, including client matters, case assignments, and internal workplace issues. Responding Parties are not aware of any communications directed to Plaintiff solely for the purpose of her acting as a witness in the Merlin Sight matter that were separate from general workplace and case-related communications.”

Defendants’ “kitchen sink” first sentence

does not answer the call of the question and is irrelevant. And just like with the response to SROG No. 11, Defendants impermissibly self-limit this response to communications “solely for the purpose of [Plaintiff’s] acting as a witness,” leaving open and unanswered all other related communications. The response is evasive and incomplete.

The motion is GRANTED as to SROG No. 14.

e.

SROG No. 19

SROG No. 19 asks Defendants to identify all employees who complained about discrimination or harassment during Plaintiff’s employment at the Atlanta office and to describe their response to each complaint. Defendants responded: “Responding Parties are not aware of any

substantiated complaints by other employees in the Atlanta office during Plaintiff's employment alleging discrimination or harassment based on national origin or disability that resulted in formal corrective action."

Defendants' response once again impermissibly self-limits the requested categories to "substantiated complaints" "that resulted in formal corrective action." These limits are not present in the request nor in this Court's prior Order.

The motion is GRANTED as to SROG No. 19.

II.

Form

Interrogatories – Employment (CRS# 5798)

a. FROG No. 217.1

FROG No. 217.1

requests specific information regarding each response to an RFA that is not an unqualified admission. Defendants responded that RFAs Nos. 3-5, 10, 15, 18, 22, 25, and 31 are not unqualified admissions, but fail to properly respond to the FROG's subparts: Defendants offer generalized factual support (consisting primarily of their position restatements), only offer the names of the identified persons with knowledge, and generally identify communication or personal record documents relating to the admissions. Defendants state in opposition that they do not oppose further responses, but seek to limit further response to RFAs that are currently denied, qualified, or otherwise not unqualified admissions. Defendants, however, fail to identify which RFAs are now considered unqualified admissions based on alleged subsequent amendments.

The motion is GRANTED as to FROG No. 217.1.

III.

Form

Interrogatories – General (CRS# 1654)

a. FROG No. 4.1

FROG No. 4.1

asks for information on insurance policies covering the claims at issue.

Defendants responded with information about a single insurance policy effective from April 2026 to April 2027. This policy was not effective at the time of the INCIDENT: Plaintiff's employment allegedly began in 2019 and ended in May 2025. Thus, Defendants' response fails to answer the call of the question. Defendants also fail to state the address of the insurance company and the name, address, and telephone number of each named insured and the custodian of the policy.

The motion is
GRANTED as to FROG No. 4.1.

IV.
Requests for
Production (CRS# 8664)

As a preliminary
issue, the Court notes that Defendants reference a privilege log in their
opposition that was prepared after this motion's filing, but one has not been
attached to the supplemental responses or to Defendants' separate statement.

a. RFP No. 5

RFP No. 5
requests all communications between HR and management relating to Plaintiff's
accommodations requests. Defendants responded: "Responsive documents relating
to Plaintiff's accommodation requests, including ADA documentation, Human
Resources records, and communications concerning accommodation and
work-from-home arrangements, have been produced. After a reasonable and
diligent search, no additional responsive documents have been identified."
Defendants' response fails to contain proper statements of compliance or
inability to comply pursuant to Code of Civil Procedure sections 2031.220 and
2031.230. Defendants also fail to identify a single responsive document and
impermissibly rely on generalizations. It is also not clear from the response
if all communications were included.

The
motion is GRANTED as to RFP No. 5.

b. RFP Nos. 16 & 17

RFP Nos. 16 and

17 request all electronic communications between Defendants' employees/agents and Defendant Navneet Chugh and Defendants' management concerning Plaintiff from January 1, 2019 to the present. Defendants responded with Bates-stamped documents relating to work assignments, case management, workplace issues, timekeeping, and client matters. "To the extent such communications exist but have not been located, Responding Party is unable to comply because such documents have not been located after reasonable and diligent search, and are not in Responding Party's possession, custody, or control, and Responding Party is not aware whether such documents ever existed or were retained."

Defendants'

statement of inability to comply maintains deficiencies that the Court identified in its prior Order. Defendants fail to specify "whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party." Defendants also fail to state whether they are complying in whole or in part; the categories identified in the responses are not all-consuming.

The motion is

GRANTED as to RFP Nos. 16 and 17.

c. RFP No. 18

RFP No. 18 seeks

all documents relating to the deletion of Plaintiff's 2019 email outbox, including IT logs and deletion records. Defendants produced Bates-stamped documents that include "email regarding deletion issues." Defendants offer the same inability to comply statement as RFP Nos. 16 and 17. As stated above, Defendants' statement of inability to comply is deficient. Defendants also fail to state whether they are complying in whole or in part; the identified "email regarding deletion issues" does not encompass the totality of documents requested.

The motion is

GRANTED as to RFP No. 18.

d. RFP No. 22

RFP No. 22 seeks

all documents relating to or referencing any document retention request Defendants received in relation to the Merlin Sight Matter between January 1, 2019 to the present. Defendants produced Bates-stamped documents that include “the Merlin Complaint; Merlin Communications; and the deposition transcript.” Defendants offer a similar inability to comply statement as RFP Nos. 16 and 17. First, Defendants’ identified categories of documents do not speak to the heart of the request: requests for document retention/preservation. Second, as analyzed in the prior subsections, Defendants’ statements of compliance or inability to comply are deficient.

The motion is
GRANTED as to RFP No. 22.

e. RFP No. 26

RFP No. 26 seeks
all documents relating to any harassment complaint involving Khushbu Shah. Defendants responded with Bates-stamped documents that “include communications reflecting workplace complaints, interpersonal conflicts, and internal discussions involving Plaintiff.” Defendants offer a similar inability to comply statement as RFP Nos. 16 and 17. Defendants’ identified categories of documents relate to Plaintiff, not Khushbu Shah. And as analyzed in the prior subsections, Defendants’ statements of compliance or inability to comply are deficient.

The motion is
GRANTED as to RFP No. 26.

f. RFP Nos. 27 & 28

RFP Nos. 27 and
28 seek all communications between Navneet Chugh and Zoe Mirza/Khushbu Shah relating to Plaintiff between January 1, 2019 to the present. Defendants responded: “Responding Party is unable to comply. After a reasonable and diligent search and inquiry, Responding Party has not identified documents specifically reflecting communications between Navneet Chugh and Khushbu Shah/[Zoe Mirza] relating to Plaintiff. Responding Party’s inability to comply is because such documents have not been located after reasonable and diligent search and are not in Responding Party’s possession, custody, or control, and Responding Party is not aware whether such documents ever existed or were retained. Responding Party is not aware of any other person or entity currently in

possession of such documents.” Defendants’ responses fail to comply with Code of Civil Procedure section 2031.230 and the Court’s prior order.

The motion is

GRANTED as to RFP Nos. 27 & 28.

g. RFP No. 31

RFP No. 31 seeks

all documents relating to Plaintiff’s case reassignment on April 7, 2025.

Defendants responded: “Responsive documents include communications relating to reassignment of Plaintiff’s work and discussions regarding workload and case management. CHUGH 000248-000265; CHUGH 000320-000321; and CHUGH 000982-000983.

No additional responsive documents identified after reasonable and diligent search.” Defendants’ response does not address the request for documents relating to “the rationale for reassignment and COMMUNICATIONS regarding the decision.” Defendants’ response also fails to comply with Code of Civil Procedure section 2031.230 and the Court’s prior order.

The motion is

GRANTED as to RFP No. 31.

h. RFP No. 59

RFP No. 59 seeks

all documents relating to any insurance policy that can be used to address the claims here. Defendants responded: “Responding Party will produce all insurance policies within its possession, custody, or control that may provide coverage for the claims in this action. CHUGH 001125-001434. After a reasonable and diligent search, Responding Party has not identified documents specifically matching each named individual combination in the requests. To the extent such documents exist but have not been located, Responding Party is unable to comply because such documents have not been located after reasonable and diligent search and are not in Responding Party’s possession, custody, or control, and Responding Party is not aware whether such documents ever existed or were retained.”

As found above,

Defendants’ response to FROG 4.1 was deficient because Defendants only identified an insurance policy that came into effect in April 2026. In

addition, Defendants state they “will produce” all policies, indicating that all relevant documentation has not been produced. It is uncertain whether Defendants have produced the identified document and if it responds to the request.

The motion is
GRANTED as to RFP No. 59.

V.

Sanctions

Courts are required to impose a monetary sanction against any individual who unsuccessfully makes or opposes a motion to compel further responses, “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h).)

Defendants

unsuccessfully opposed all four motions and have not provided a persuasive justification for their inability to comply with this Court’s prior Order.

Defendants point to prior sanctions awarded in this case against them to support their opposition to the requests. This point, however, cuts against their argument and shows a pattern of discovery misuse. Defendants conceded that most of their responses were deficient and noncompliant in opposition. Thus, the Court finds the imposition of sanctions to be justified.

The Court GRANTS

sanctions against Defendants and their counsel of record in the sum of \$7,200.00 (i.e., 3 hours per motion at a rate of \$600/hour).

CONCLUSION

Plaintiff’s motions to compel further responses are GRANTED as set forth above.[1]

Defendants Chugh, LLP and Navneet Chugh shall provide further responses within 20 days of this order. Plaintiff’s

request for sanctions is also GRANTED in the sum of \$7,200.00 against Defendants and their counsel of record, and the sanctions shall be paid within 30 days of this order.

[1] Plaintiff's separate statement

does not reference SROG No. 20. Therefore, the Court does not address SROG No. 20.